P.B. Nos. 270 and 281

Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

BANGSAMORO AUTONOMY ACT NO. 72

Begun and held in Cotabato City, on Thursday, the 15th day of September 2022.

AN ACT PROVIDING FOR SEVEN DAYS FORFEITABLE BEREAVEMENT LEAVE PRIVILEGES ANNUALLY WITH PAY TO EMPLOYEES IN THE PUBLIC AND PRIVATE SECTORS WITHIN THE BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO

Be it enacted by the Bangsamoro Transition Authority Parliament assembled:

SECTION. 1. ***Short Title.*** – This Act shall be known as the *"Bangsamoro Bereavement Leave Act of 2025."*

SEC. 2. ***Declaration of Policy.*** – It is the policy of the Bangsamoro Government to exercise the powers expressly granted, as well as those necessary, appropriate, or incidental for its efficient and effective governance, and those essential to the promotion of general welfare. Within its territorial jurisdiction, the Bangsamoro Government shall ensure and support, among other things, the improvement of public morals, the promotion of full employment among its residents, and the preservation of the well-being of its inhabitants. Toward this end, the Bangsamoro Government recognizes the unique and societal aspects of bereavement and shall foster a workplace culture that upholds the welfare of its people.

SEC. 3. ***Bereavement Leave Privileges.*** – Any employee, regardless of employment status, in the private or public sector within the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) shall be entitled to seven (7) days bereavement leave with pay annually, following the death of an employee's immediate family member. In computing the leave period, Saturdays, Sundays and holidays shall be excluded.

SEC. 4. ***Coverage; Exceptions.*** – For purposes of this Act, only employees engaged in an employer-employee relationship shall be entitled to the bereavement leave privileges provided herein.

Entities classified as small and micro enterprises shall be exempted from granting the bereavement leave privileges under this Act to their employees.

SEC. 5. ***Immediate Family, Definition.*** – An immediate family member of an employee shall be his or her:

a) Legitimate spouse/s;
b) Biological/adoptive parents or legal guardians;
c) Legitimate parents-in-law;
d) Biological/adoptive children or legal wards; or
e) Full-blood siblings.

The employer may require reasonable documentation, including but not limited to death certificate, obituary, or proof of relationship, to support the request for bereavement leave.

SEC. 6. ***Non-Commutation of Leave Privileges.*** – The bereavement leave privileges, which are not availed by an employee, shall be non-cumulative and non-convertible to cash.

SEC. 7. ***Non-diminution of Benefits.*** – Nothing in this Act shall be construed to diminish any similar existing benefits currently enjoyed by qualified employees under prevailing laws, decrees, executive orders, contracts, agreements, or company policies or practices, if such benefits are more beneficial to the employee.

SEC. 8. ***Protection from Adverse Employment Action.*** – The availment of the bereavement leave privileges by a qualified employee shall not be a ground for any adverse action by the employer, including but not limited to termination, constructive dismissal, demotion of any kind, or the issuance of unsatisfactory performance rating.

SEC. 9. ***Period for Acting on Bereavement Leave Application; Legal Remedy.*** – If a bereavement leave application is not acted upon within five (5) working days from receipt thereof by the head of agency, in the case of the public sector, or by the employer, in the case of the private sector, or their duly authorized representative, the application shall be deemed approved.

Upon complaint of an aggrieved employee in the private sector, the Minister of Labor and Employment (MOLE), or any duly authorized hearing officer of the MOLE, shall have the authority to hear and decide, through summary proceedings and after due notice, any matter involving the unjustified denial or refusal by an employer to act on an application for bereavement leave privileges.

In the case of complaints against responsible officers in the public sector, the provisions of the Revised Rules on Administrative Cases in the Civil Service shall apply.

SEC. 10. ***Implementing Rules and Regulations.*** – The MOLE shall coordinate with the Civil Service Commission for the BARMM in formulating and issuing the necessary rules and regulations within sixty (60) days from the effectivity of this Act.

SEC. 11. ***Separability Clause.*** – If any part, section, or provision of this Act is declared invalid or unconstitutional, the remaining provisions shall continue to be in full force and effect.

SEC. 12. ***Repealing Clause.*** – All regional laws, decrees, orders, rules, regulations, and other issuances, or parts thereof that are inconsistent with the provisions of this Act are hereby repealed or modified accordingly.

SEC. 13. ***Effectivity.*** – This Act shall take effect fifteen (15) days after its publication in the Bangsamoro Gazette or in a newspaper of regional circulation within BARMM.

ATTY. PANGALIAN M. BALINDONG
Speaker

This Act was passed by the Bangsamoro Transition Authority Parliament on *Sha'ban* 21, 1446/February 20, 2025.

PROF. RABY B. ANGKAL
Secretary-General

Approved:

AHOD B. EBRAHIM
Chief Minister
Date: MAR 03 2025

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